

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing
of personal data, as well as the free movement of such data and repealing Directive 95/46/EC,
“General Data Protection Regulation” (hereinafter, Regulation);

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the Code regarding
the protection of personal data (hereinafter, Code);

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance,
aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection
of personal data, approved by Resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8,
2019 and on www.gdpd.it, doc. web n. 9107633 (hereinafter, Guarantor Regulation No. 1/2019);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for
the protection of personal data, doc. web n. 1098801;

Rapporteur Prof. Pasquale Stanzione;

PREMISED

1. Introduction.

As part of a series of checks carried out ex officio by this Authority, a verification conducted on XX
revealed that the Municipality of Paternò (hereinafter, Municipality) has not communicated the contact
details of the Data Protection Officer (hereinafter, DPO) to the Authority – using the dedicated channel
available at the page <https://servizi.gdpd.it/comunicazionerpd/s/> – as required by Article 37, paragraph
7, of the Regulation.

Furthermore, a simultaneous check conducted on the Municipality's official website did not yield the
contact details of the DPO, and therefore, no elements were found to prove the designation of the DPO
by the Municipality.

Consequently, with a note dated XX (prot. n. XX), the Office, based on the elements acquired and the
checks carried out, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the
initiation of proceedings for the adoption of measures under Article 58, paragraph 2, of the Regulation,
for failing to designate the DPO and for not publishing the contact details of the same nor
communicating them to the Authority, in violation of Article 37, paragraphs 1 and 7, of the Regulation.
With the same note, the aforementioned holder was invited to submit defensive writings or documents
to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the
Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

However, no defensive writings were received in this regard.

2. Outcome of the investigative activity.

Pursuant to Article 37 of the Regulation, the controller (and the processor) of the processing
“[designates] systematically a data protection officer whenever: a) the processing is carried out by a
public authority or body, except for courts acting in their judicial capacity” (paragraph 1, letter a)) and

“publishes the contact details of the data protection officer and communicates them to the supervisory authority” (paragraph 7).

Moreover, in the Guidelines on Data Protection Officers (DPOs), adopted by the Article 29 Working Party on personal data protection on December 13, 2016, and amended on April 5, 2017, it is added that “Article 37, paragraph 7, of the GDPR requires the controller or processor to publish the contact details of the DPO, and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both data subjects (inside or outside the entity/controller or processor) and supervisory authorities can easily and directly contact the DPO without having to go through another structure operating within the controller/processor” (paragraph 2.6).

The Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector, adopted by the Guarantor on April 29, 2021, with provision No. 186 (doc. web n. 9589104), also specifies that “As for publication, this must be carried out on the administration's website, within a section easily recognizable by the user and accessible from the homepage, as well as within the section dedicated to the organizational chart of the entity and the relevant contacts,” and that “As for communication to the Authority, it is noted that the Guarantor has made available a specific online procedure not only for communication but also for the variation and revocation of the name of the designated DPO. This procedure represents the only contact channel that can be used for this specific purpose and is available at the page <https://servizi.gdpd.it/comunicazionerpd/s/>, where the appropriate instructions and related FAQs are also provided: moreover, attention is drawn to entities to correctly enter the requested data,

****1. Identification of the Data Controller****

(the entity as a whole, and not the legal representative) and the compilation of the tax code of the administration (and not the VAT number, or the tax code of another subject)” (par. 7).

In this case, given the failure to publish and communicate the contact details of the DPO to the Authority, the violation of Article 37, par. 7, of the Regulation is established. Furthermore, since it was not possible to obtain the contact details of the DPO, there are no elements capable of proving the actual designation of the DPO by the Municipality, in violation of Article 37, par. 1 of the Regulation. Based on the evaluations mentioned above, considering also the absence of defensive writings from the Municipality, it is impossible to overcome the observations notified by the Office with the initiation of the procedure, and they are insufficient to allow the archiving of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the violation of Article 37, pars. 1 and 7, of the Regulation is noted due to the failure to designate and publish and communicate the contact details of the DPO to the Authority.

****2. Corrective Measures (Article 58, par. 2, lett. d), of the Regulation). ****

Article 58, par. 2, of the Regulation grants the Garante the power to “order the data controller or the data processor to bring processing into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specific time frame” (lett. d).

Taking into account what emerged during the investigation phase and considering the circumstance that, as illustrated in the previous paragraph 2, the designation of the DPO by the Municipality is not proven and there has been a failure to publish and communicate the contact details of the DPO to the Authority, it is necessary, pursuant to Article 58, par. 2, lett. d), of the Regulation, to order the Municipality to adopt appropriate measures to:

- 1) designate the DPO (Article 37, par. 1, lett. a) of the Regulation);
 - 2) publish the contact details of the DPO (Article 37, par. 7 of the Regulation);
 - 3) communicate the contact details of the DPO to the Authority (Article 37, par. 7 of the Regulation).
- Pursuant to Articles 58, par. 1, lett. a), of the Regulation and 157 of the Code, the Municipality must also provide adequately documented feedback, within thirty days from the notification of this provision, regarding the initiatives undertaken to implement the above orders pursuant to the cited Article 58, par. 2, lett. d), as well as any measures taken to ensure compliance of the processing with the data protection regulations.

****3. Adoption of the injunction order for the application of the administrative pecuniary sanction (Article 58, par. 2, lett. i), and Article 83 of the Regulation; Article 166, par. 7, of the Code).****

The Garante, pursuant to Article 58, par. 2, lett. i), and Article 83 of the Regulation, as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case,” and, in this context, “the Board [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante’s website pursuant to Article 166, par. 7, of the Code” (Article 16, par. 1, of the Garante Regulation No. 1/2019).

In this regard, in this case, the violation of the cited provision is subject to the application of the administrative pecuniary sanction provided for by Article 83, par. 4, of the Regulation.

The aforementioned administrative pecuniary sanction, imposed based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, par. 2, of the Regulation, with respect to which the following is observed.

The failure to publish and communicate the contact details of the DPO by the Municipality has negatively impacted the ability of interested parties and the Authority to contact the DPO easily and directly; this, moreover, without providing elements to prove the actual designation of the DPO. In this regard, the Municipality, having not submitted defensive writings and having failed to fulfill the aforementioned obligations, has not demonstrated cooperation with the supervisory authority in order to remedy the contested violation.

In favor of the Municipality, however, the absence of previous relevant violations committed or previous measures pursuant to Article 58 of the Regulation is noted.

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €6,000 (six thousand) for the violation of Article 37, pars. 1 and 7 of the Regulation as an administrative pecuniary sanction deemed, pursuant to Article 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

It is also considered that the accessory sanction of publication on the Garante’s website of this provision should be applied, as provided for by Article 166, par. 7, of the Code and Article 16 of the Garante Regulation No. 1/2019, as it concerns the failure to fulfill an obligation that has become... mandatory for more than six years.

It is finally believed that the conditions referred to in Article 17 of the Garante Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante pursuant to Article 57, paragraph 1, letter a), of the Regulation, declares the conduct of the Municipality of Paternò, described in the reasoning, unlawful, consisting of the violation of Article 37, paragraphs 1 and 7 of the Regulation;

ORDERS

the Municipality of Paternò, located at Parco del Sole No. 22 - 95047 - Paternò (CT) – CF 00243770872, pursuant to Article 58, paragraph 2, letter i), and Article 83 of the Regulation, to pay the sum of €6,000 (six thousand) as an administrative pecuniary sanction for the violation indicated in the reasoning. In this regard, it is reminded that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011);

ORDERS

the Municipality of Paternò:

- to pay the sum of €6,000 (six thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to designate the DPO and to publish the relevant contact details, as well as to communicate the contact details of the DPO to the Authority;
- pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, to communicate

to this Authority, providing adequately documented feedback, within thirty days from the notification of this provision, the initiatives undertaken to implement the above orders pursuant to the aforementioned Article 58, paragraph 2, letter d), as well as any measures taken to ensure compliance of the processing with the regulations on personal data protection.

DECIDES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the Authority's website;
- pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Article 152 of the Code, and Article 10 of Legislative Decree 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 16, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei